

SENATE No. 312

The Commonwealth of Massachusetts

PRESENTED BY:

Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting the use of Native American mascots by public schools in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>2/4/2025</i>
<i>Michael J. Barrett</i>	<i>Third Middlesex</i>	<i>2/5/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/11/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/19/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/20/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/20/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>4/4/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>6/23/2025</i>

SENATE No. 312

By Ms. Comerford, a petition (accompanied by bill, Senate, No. 312) of Joanne M. Comerford, Jason M. Lewis, Michael J. Barrett, James B. Eldridge and other members of the Senate for legislation to prohibit the use of Native American mascots by public schools in the Commonwealth. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 245 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting the use of Native American mascots by public schools in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) For purposes of this section, the word “commission” shall mean the
2 commission on Indian Affairs.

3 Notwithstanding any general or special law to the contrary, the department of elementary
4 and secondary education shall create and submit to the commission a list of all schools in the
5 commonwealth and their athletic team names, logos and mascots. Within 3 months of receiving
6 the list, the commission shall identify schools with athletic team names, logos and mascots that
7 refer to, represent, or are associated with Native Americans, including aspects of Native
8 American cultures and Native American tribes.

(b) The commission shall provide the list of the schools identified by the commission under subsection (a) to the department and shall publish the list on its website.

(c) Schools that are included in the list identified by the commission under subsection (a) shall not purchase or refurbish any uniforms or other materials, including banners, signs, scoreboards, displays or other materials bearing the athletic team name, logo or mascot until the school reaches an agreement with the department pursuant to subsection (e).

(d) Not later than 1 year after the publication of the list under subsection (b), the commission shall review general issues regarding Native American team names, logos and mascots used in the Commonwealth, and specific concerns with individual schools included on the list identified by the commission. Based on its review, the commission shall submit recommendations to the department on: (i) policies to phase out or ban mascots that name, refer to, represent or are associated with Native Americans, including aspects of Native American cultures and specific Native American tribes; (ii) any specific schools and their team names, logos or mascots; and (iii) ways to increase respect and knowledge of Native American heritage and cultures in schools and across the commonwealth. The department shall also receive comments directly from tribal nation representatives designated by the commission or recognized by the United States.

(e) Not more than 3 months following the receipt of recommendations from the commission pursuant to subsection (d), the department shall develop a memorandum of understanding with each school identified on the list prepared under subsection (a); provided, however, that the department shall utilize the information provided by the commission in its recommendations under subsection (d) during the negotiation; and provided further, that the

commission shall solicit comments from tribal nation representatives designated by the commission or recognized by the United States. Not later than 6 months following the beginning of negotiations, each identified school shall enter into a memorandum of understanding with the department concerning the school's use of their athletic team name, logo or mascot. An agreement shall include an implementation timeline not to exceed 3 years for full implementation.

(f) Schools subject to subsection (e) that fail to enter into an agreement or fail to comply with the memorandum of understanding shall not be eligible for discretionary state education grants.

(g) Notwithstanding the provisions of this act, a school may at any time inform the department of its plan to stop or phase out the use of school athletic team names, logos or mascots which name, refer to, represent or are associated with Native Americans, including aspects of Native American cultures and Native American tribes.

(h) No public school may adopt a new athletic team name, logo or mascot which names, refers to, represents or is associated with Native Americans, including aspects of Native American cultures and Native American tribes, including, but not limited to, tribes that are recognized by the United States or the Commonwealth.

(i) The department may promulgate regulations to implement this section.

SECTION 2. The list required under subsection (a) of section 1 shall be completed no later than 3 months after the effective date of this act.

SECTION 3. Subsection (h) of section 1 shall be effective upon the passage of this act.